

IN THE **COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT**
IN AND FOR **MANATEE COUNTY, FLORIDA**
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-

MELINDA SOMMER, ROBIN MILLER,
NAZIER MONTERIO and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTON) AND
DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s),
MELINDA SOMMER, ROBIN MILLER, NAZIER MONTERIO, and ANY UNKNOWN
PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and
alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #230, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendant, MELINDA SOMMER, and the

Plaintiff, are annual.

5. Defendant, MELINDA SOMMER, natural person, agreed to reside at 900 9th Ave East, Lot #230, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Defendant's acknowledgment of receipt of the Rules and Regulations is attached to this Complaint as Plaintiff's Exhibit A.
6. The Rules and Regulations for Colonial Manor are incorporated into this complaint as Exhibit B.
7. Plaintiff, as landlord, leased to Defendant, MELINDA SOMMER, LOT #230, of the above stated mobile home park at a monthly rental fee. For the year 2026, the monthly rent is the sum of \$875.00
8. Defendants ROBIN MILLER, NAZIER MONTERIO and ANY UNKNOWN PARTY(s) IN POSSESSION may reside on the real property at 900 9th Avenue East, Lot #230, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.
9. Defendants, ROBIN MILLER and NAZIER MONTERIO, are believed to be the record owners of the mobile home on the real property located at 900 9th Ave East, Lot #230, Palmetto, Florida, 34221 and are parties to this eviction pursuant to provisions of the Florida Mobile Home Act, Chapter 723 of Florida Statutes.
10. Defendant, MELINDA SOMMER, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,840.00 which represents the months of July 2026 through August 2026 including late fees, which, according to Paragraph 1 of the Rules and Regulations of Colonial Mobile Manor constitutes additional rent.
11. On August 6, 2026, Plaintiff served on Defendants, MELINDA SOMMER, ROBIN

MILLER, NAZIER MONTERIO, and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #230, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's **Exhibit C**.

12. On August 6, 2026, Plaintiff also served on Defendants, MELINDA SOMMER, ROBIN MILLER, NAZIER MONTERIO, and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice and certified proof of mailing is attached and marked Plaintiff's **Exhibit D**.
13. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.
14. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.
15. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.
16. The total lot rental amount, which must be paid into the registry of the court is \$1,840.00 due as of August 6, 2026, and \$875.00 for each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises in favor of Plaintiff and a writ of possession removing Defendants, MELINDA

SOMMER, ROBIN MILLER, NAZIER MONTERIO, and ANY UNKNOWN PARTY(s) IN POSSESSION, and four such other and further relief as the Court may deem proper.

COUNT II

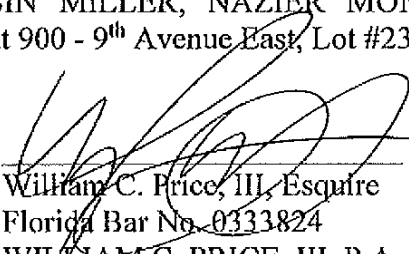
ACTION FOR DAMAGES (RENTAL)

17. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.
18. Plaintiff re-alleges the facts contained within paragraphs 1 through 16 as though fully set forth herein.
19. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.
20. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendants, MELINDA SOMMER, ROBIN MILLER, and NAZIER MONTERIO, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, MELINDA SOMMER, ROBIN MILLER, NAZIER MONTERIO and ANY UNKNOWN PARTY(s) IN POSSESSION at 900 - 9th Avenue East, Lot #230, Palmetto, Florida, 34221 on this 12 day of August, 2026.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wepricelaw.com
Attorney for Plaintiff

COLONIAL MOBILE MANOR 55+ COMMUNITY

900 9TH AVE E
PALMETTO, FLORIDA 34221
PHONE: (941) 722-3191

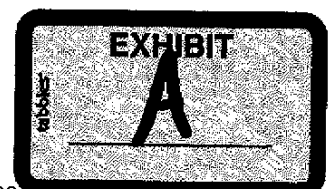
LOT # 230

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND REGULATIONS OF
COLONIAL MOBILE MANOR 55+ COMMUNITY, WHICH I (WE) AGREE TO ABIDE
BY.

DATE: 12/28/23

SIGNATURE: [Signature]

SIGNATURE: _____



Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in



the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

PAGE 4 OF 4

20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aerials are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #___, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager
900 - 9th Avenue East
Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP
900 - 9th Avenue East
Palmetto, Florida 34221.

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: August 08, 2026

TO: Melinda Sommer/Robin Miller/Nazier Monterio
and All Unknown/Unauthorized
Occupants
900 9th Ave E Lot 230, Lot # 230
Palmetto, Florida 34221

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

Certified Mail: # 9589 0710 5270 3303 2787 39

Robin Miller / Nazier Monterio
and All Unknown/Unauthorized Occupants
2818 Anthony St, Apt # 6
Tampa, Florida 33619-1844

Certified Mail: # 9589 0710 5270 3303 2787 22

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$875.00 per month.

You have failed to pay all the past due lot rental amounts for the months of thru August, 2026, in the amount of \$ 965.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 965.00, payable to the address above.

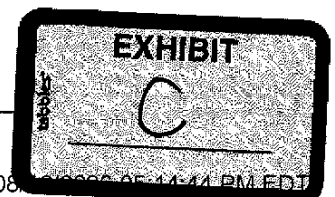
- Rent for the billing period of August 2026 in the amount of \$875.00
- Late Fee for the billing period of August 2026 in the amount of \$45.00
- July 2026 - \$45

Late Fee on Jul 1, 2026 to Jul 31, 2026 in the amount of \$45.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before August 13, 2026, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.



COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: August 06, 2026

BY: Cheryl Reake
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 230 , Lot # 230)

POSTED ON: Aug 6 2026 @ 12:30 pm
(date/time)

POSTED BY: Cheryl Reake
(Employee Signature)

Colonial Manor MHC Holdings, LLC

VS.

Merinda Sommer-Rubin MHC Holdings, LLC

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: August 08, 2026

TO: Melinda Sommer/Robin Miller/Nazier Monterio
and All Unknown/Unauthorized
Occupants
900 9th Ave E Lot 230, Lot # 230
Palmetto, Florida 34221

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

Certified Mail: # 9589 0710 5270 3303 2787 39

Robin Miller / Nazier Monterio
and All Unknown/Unauthorized Occupants
2818 Anthony St, Apt # Apt B
Tampa, Florida 33619-1844
Certified Mail: # 9589 0710 5270 3303 2787 22

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You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$875.00 per month.

You have failed to pay all the past due lot rental amounts for the months of thru August, 2026, in the amount of \$ 965.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 965.00, payable to the address above.

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Late Fee on Jul 1, 2026 to Jul 31, 2026 in the amount of \$45.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before August 13, 2026, your rental agreement will be terminated, and you must immediately vacate the premises.

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PLEASE GOVERN YOURSELF ACCORDINGLY.

EXHIBIT

D

COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____

CERTIFIED MAIL: # _____

CERTIFIED MAIL: # _____

MAILED ON: August 06, 2026

BY: Cheryl Reake
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 230 , Lot # 230)

POSTED ON: Aug 6 2026 @ 12:30 pm
(date/time)

POSTED BY: Cheryl Reake
(Employee Signature)

Colonial Manor MHC Holdings, LLC

VS.

Heads Runner/Robin Williams/Kristen Williams

Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 09/08/2025
Certified Mail® 15.55
Tracking #: 9529 0710 3270 3303 2787 00
Return Receipt 54.65
Tracking #: 9550 9402 3014 4122 0130 41
Total \$11.02

First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 09/08/2025
Certified Mail® 55.55
Tracking #: 9529 0710 3270 3303 2787 11
Return Receipt 54.65
Tracking #: 9550 9402 3014 4122 0130 34
Total \$11.02

First-Class Mail® 1 \$0.82
Letter
Tampa, FL 33619
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 09/08/2025
Certified Mail® 55.55
Tracking #: 9529 0710 3270 3303 2787 22
Return Receipt 54.65
Tracking #: 9550 9402 3014 4122 0130 12
Total \$11.02

First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 09/08/2025
Certified Mail® 55.55
Tracking #: 9529 0710 3270 3303 2787 09
Return Receipt 54.65
Tracking #: 9550 9402 3014 4122 0130 34
Total \$11.02

First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 09/08/2025
Certified Mail® 55.55
Tracking #: 9529 0710 3270 3303 2787 53
Return Receipt 54.65
Tracking #: 9550 9402 3014 4122 0130 98
Total \$11.02

First-Class Mail® 1 \$0.82
Letter
Palmetto, FL 34221
Weight: 0 lb 0.60 oz
Estimated Delivery Date
Sat 09/08/2025
Certified Mail® 55.55
Tracking #: 9529 0710 3270 3303 2787 80
Return Receipt 54.65
Tracking #: 9550 9402 3014 4122 0130 91
Total \$11.02

Grand Total: \$55.12